

Court No. - 40

Case :- WRIT - C No. - 38972 of 2023

Petitioner :- Aftab Alam

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Ashok Kumar Singh

Counsel for Respondent :- C.S.C., Sushil Kumar Pandey

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Prashant Kumar, J.

1. Heard learned counsel for the petitioner, Mrs. Uttar Bahuguna, learned Additional Chief Standing Counsel for the State-respondents. Sri Sushil Kumar Pandey, learned counsel has entered appearance today on behalf of the respondent Nos. 2 and 3.

2. In view of the order we propose to pass, no notice is required to be sent to private respondent Nos. 4 to 7.

3. This writ petition is preferred for following principal relief:

"(i) Issue a writ, order or direction in the nature of mandamus commanding the respondent no. 3 to supply the electric to the petitioner in pursuance of electric connection dated 21.09.2023 within stipulated period as this Hon'ble court may deem fit and proper."

3. Petitioner claims to be a tenant shop of respondent Nos. 4 to 7 since 1977 and at present, he is running a jewelry shop in the disputed property and paying rent regularly and the private respondent Nos. 4 to 7 refused to accept the rent, he instituted Misc. Suit No. 263 of 2020 (Aftab Alam vs. Manoj Kumar Gupta and others), and thereafter since 12.12.2020, he is depositing rent before the competent court. Learned counsel for the petitioner states that once the private respondents tried to evict the petitioner forcefully, he filed the Original Suit No. 1217 of 2020 (Aftab Alam vs. Manoj Kumar Gupta and others) before the Civil Judge (J.D.), Bhadohi - Gyanpur for permanent injunction. He submits that when private respondents disconnected the electric connection of the shop of the petitioner, he applied for a new electric connection being a tenant and after completing all formalities, department installed the electric meter in the premises of the shop of the petitioner on 21.09.2023 but due to non supply of electric, petitioner's fundamental rights are violated.

4. Admittedly, the electricity connection is sought by the petitioner being tenant. It is worth to mention that supply of electricity monopolized by U. P. Power Corporation is essential for life and it is impossible to live without electricity and the same cannot be negated. The Division Bench of this Court in Writ C No. 28295/2014 (Seema Mansoor vs. U.P. Power Corporation Ltd. and others) has held that an application for grant of electricity connection cannot be refused by licensee on the ground that there is no consent of the landlord. It is further

observed that from the scheme of the Act and the duties cast upon the licensee and right conferred upon the person making application for supply of electrical energy in case he submits indemnity bond, a lessee/tenant or occupier cannot be refused electricity connection merely for want of consent of the landlord. Thus, it is clear that the application of the petitioner can always be considered as per Clause 4.4 read with Annexure 4.2 and Annexure 4.3 of Electricity Supply Code 2005, which provides either for consent letter of owner of the premises or in the absence thereof indemnity bond is to be furnished by the lessee/tenant or occupier of the premises.

4. Considering the facts and circumstances of the case, no useful purpose would be served in keeping the writ petition pending consideration. The writ petition is disposed of asking the respondent/competent authority to consider the application of petitioner, if not yet done, in accordance with law and take appropriate decision in four weeks period but certainly after hearing the parties having stake in the matter.

Order Date :- 18.12.2023
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